

Court No. - 3

Case :- WRIT - C No. - 26445 of 2011

Petitioner :- Shaphalata Jain

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Keshav Kumar Srivastava

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

The petitioner's grievance has been considered by the authority concerned. The petitioner has alternative forum for adjudication before the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. Therefore, we are not inclined to interfere with the same. Hence, the writ petition is dismissed at the stage of admission, however, without imposing any cost.

In any event, passing of this order will no way affect the right of the petitioner in approaching the authority concerned for its early disposal. At the time of taking decision, the authority concerned will carefully go into the factum of the decree of the civil court and the possession of the petitioner.

Order Date :- 6.5.2011

MAA/-